

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel,
Sh. Hari Kishan, Prosecutor alongwith Sh. Prashant
Baliyan, Investigating Officer, complainant, SFIO
Sh. Amit Bhalla, counsel for applicant-Jinender Vyas
Sh. Joydip Bhattacharya, counsel for applicant-Abhay K.Shah.
Ms. Adity Choudhary, Advocate, local counsel for
applicant-Mahendra Tak.
Sh. Harsh Kaushik, counsel for applicants-Megha Chauhan
and Indu Tak.
Sh. Sachin Mittal, counsel for applicant-Shyam Bihari.
Sh. Neeraj Dev Gaur, counsel for applicants-Ravi Tak,
Sudhir Mehta, Raj Kumar Bohra, Saurabh & Mahesh
Kumar Tak.
Sh. Pawan Raghav, counsel for applicant-Mahesh Dutt.
Sh. Rahul Dhankar, counsel for applicant-accused- Nitin
Rathore (A-116).

Today the case was fixed for further argument on the
anticipatory bail applications filed by the applicants-accused namely
Jinendra Vyas (A-118), Abhay K. Shah (A-127), Mahender Singh Tak (A-
155), Megha Chauhan (A-163), Indu Tak (A-164), Shyam Bihari Gupta (A-
165), Ravi Tak (A-166), Sudhir Mehta (A-170), Raj Kumar Bohra (A-171),
Saurabh Tak (A-172), Mahesh Dutt Sharma (A-178) and Mahesh Kumar
Tak (A-187). Arguments on two bail applications of applicants-accused
Jinendra Vyas (A-118) and Abhay K. Shah (A-127) have been heard from
10.30 a.m. to 12.30 p.m. Whereas argument on misc. application for
interim bail filed by the applicant Surender Singh, who is in custody will be
heard after lunch. Ms. Aditya Advocate, local counsel for applicant-
accused Mahendra Tak, who is represented by Sh. R.K. Handoo, a Senior
Advocate from Delhi has requested a date, inter-alia alleging that Shri

Handoo has to go to Ludhiana in some other time bound matter and could not return back. Then it is also a fact that in three bail applications replies have been filed today itself. Lastly it is also conceded that now all the 12 bail applications to be heard today are arising out of similar facts and circumstances based on same allegations and thus required to be decided simultaneously. In these facts and circumstances all the 12 bail applications of the applicants-accused namely Jinendra Vyas (A-118), Abhay K. Shah (A-127), Mahender Singh Tak (A-155), Megha Chauhan (A-163), Indu Tak (A-164), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Sudhir Mehta (A-170), Raj Kumar Bohra (A-171), Saurabh Tak (A-172), Mahesh Dutt Shara (A-178) and Mahesh Kumar Tak (A-187) are adjourned to **23.9.2019** **for arguments**. No further opportunity shall be granted. Interim protection against coercive process granted to these 12 applicants is extended till then.

2. Heard on the application filed on 17.9.2019 by applicant-accused, A-116 Nitin Rathore son of Sh. K.K. Rathore for cancellation of warrant of arrest issued against him as per the order dated 4.9.2019. However, on being asked whether the applicant-accused is surrendering before the court, the counsel for the applicant stated that he is not surrendering but he is seeking cancellation of the warrant of arrest only on the plea that he will join the investigation and trial as and when directed. However, he has already been directed to appear and join the trial but he failed. Initially bailable warrants were issued against the applicant-accused

but the same remained unexecuted but it was alleged by the counsel for the complainant, SFIO that the applicant-accused and similarly situated other accused had due knowledge of this summoning order and this complaint but they were avoiding the service intentionally. As such warrant of arrest was issued against the applicant vide detailed order dated 4.9.2019. If the applicant was not residing at the given address and shifted to some other address for the last 5-6 years as alleged to cancel warrant of arrest, how he came to know about the pendency of this complaint and come forward with this application is a fact which remained unexplained, rather, it shows that applicant was knowing the proceedings and this application has been filed without any basis just to gain time and thus not maintainable as applicant has not surrendered and thus accordingly dismissed. However, copy of entire complaint has been supplied to the counsel for this applicant as requested. Papers be tagged with main file.

18.9.2019

(ashok)

Sd/-

(Ravi Kumar Sondhi)
Sessions Judge, Gurugram
(UID No.HR0026)